

HOUSE No. 2302

The Commonwealth of Massachusetts

PRESENTED BY:

Kristin E. Kassner

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to expand designation of priority development sites.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>1/17/2025</i>

HOUSE No. 2302

By Representative Kassner of Hamilton, a petition (accompanied by bill, House, No. 2302) of Kristin E. Kassner for legislation to expand designation of priority development sites. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to expand designation of priority development sites.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of chapter 43D of the General Laws, as amended by section 176
2 of chapter 238 of the acts of 2024, is hereby further amended by inserting before the definition of
3 “Governing body” the following definition:-

4 "Community development plan", a comprehensive, strategic plan for the future of a city
5 or town, which shall include, but not be limited to, a plan for: (i) new housing opportunities; (ii)
6 any new commercial or industrial economic development; (iii) existing infrastructure that needs
7 to serve new uses, including, but not limited to uses for water, transportation, housing or
8 electricity; (iv) transportation infrastructure; (v) climate change and resiliency; or (vi) open
9 space.

10 SECTION 2. Section 3 of said chapter 43D, as appearing in section 177 of said chapter
11 238, is hereby amended by striking out subsection (a) and inserting in place thereof the following
12 subsection:-

(a) In order for a property to receive a designation as a priority development site, the site or infrastructure need shall: (i) be approved by a town meeting in a town; (ii) be identified in a local comprehensive master plan, housing needs assessment, economic development plan, district or corridor plan or community development plan; (iii) be identified in a local capital improvement plan or a plan developed by a regional planning agency; or (iv) be part of a project approved by the planning board or special permit granting authority. The governing body shall file a formal proposal with the interagency permitting board. The proposal shall include: (A) a detailed description of the property; (B) attestation of the governing body's good faith commitment to comply with this chapter; (C) written authorization of the property or utility owner as applicable; and (D) at the discretion of the governing body, a request for a technical assistance grant.

SECTION 3. Said chapter 43D is hereby further amended by inserting after section 13 the following section:-

Section 13A. (a) Technical assistance funding is intended to be a one-time grant to municipality, if the municipality has adopted expedited permitting as provided in sections 3 to 11, inclusive.

(b) A municipality shall be eligible for technical assistance funding, which may be less than the previous amounts awarded, for a second time if it has identified and successfully permitted 1 priority development site.

(c) The secretaries of the executive office of housing and livable communities, the executive office of economic development and the executive office of energy and environmental affairs, collectively, shall develop and implement a 2-year program to provide technical

35 assistance and resources to cities and towns for the purpose of creating community development
36 plans. Such assistance may include the provision of in-kind services or discretionary funds where
37 appropriate.